

Court No. - 2

Case :- WRIT - C No. - 1861 of 2025

Petitioner :- Suman Shukla

Respondent :- State Of U.P.Thru. Prin. Secy. Deptt. Energy
Lko. And 4 Others

Counsel for Petitioner :- Hemant Kumar Mishra, Abhishek
Mishra, Arti Ganguly

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

1. Heard.

2. Although, there is a remedy of appeal under Section 127 of the Electricity Act, 2003, however, the petitioner says that no raid whatsoever is conducted in terms of paragraph No.6.8(iv) and (v) of the Electricity Supply Code, 2005, therefore, only to ascertain this aspect let the original record be produced before this Court on the next date i.e. on **08.04.2025 as fresh** till then recovery of the electricity dues in pursuance to the impugned action shall not be made.

(Om Prakash Shukla, J.) (Rajan Roy, J.)

Order Date :- 5.3.2025

-Piyush-

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1. Heard Shri Hemant Kumar Mishra, learned Counsel for the petitioner, Shri Manish Jauhari, learned Counsel for the Electricity Corporation and learned Standing Counsel for the State.

2. After hearing the parties what comes out is that a final assessment has been made but the petitioner could not submit her objection to the provisional assessment, as claimed. It would be better if a fresh final assessment is made after an opportunity to the petitioner to respond to the provisional assessment and to facilitate the aforesaid exercise. The inspection note, which is the basis for the provisional assessment and subsequent proceedings has been provided by Shri Manish Jauhari, learned Counsel for the Electricity Corporation to the petitioner's Counsel. At this stage, learned Counsel for the Electricity Corporation says that he is not aware as to whether the compact disk, which had been prepared at the time of inspection, can be provided to the petitioner or not, however, he will seek instructions in this regard and if it is permissible to give a copy thereof to the petitioner, the same would also be provided otherwise he would be informed that this cannot be provided. Now, the petitioner may submit her response to the provisional assesement within 15 days' thereafter a fresh final assessment shall be made within three weeks' as per law. The impugned final assessment as also the demand of recovery as a consequence thereof, are quashed. Consequences will follow, accordingly.

3. With the aforesaid observations/directions, the writ petition is **disposed of.**

(Om Prakash Shukla, J.)

(Rajan Roy, J.)

Order Date :- 8.4.2025

-Piyush-